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INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement ("Agreement") is entered into by and between Menlo Circus Club ("Company") and David Mok ("Contractor"). In consideration of the payments to be made to Contractor, and for other good and valuable consideration, Company and Contractor agree as follows:

1. Services. During the Services Period (as defined in paragraph 2 below) Contractor agrees to perform services as a Pickle Ball Instructor (hereinafter referred to as the "Services"). The Company and Contractor enter into this Agreement for the performance of the Services because Contractor possesses expertise separate and distinct from work typically performed in Company's usual and customary business operations.

2. **Term And Payment.** Unless earlier terminated pursuant to paragraph 10 below, and unless extended by mutual agreement of the parties, Contractor will provide the Services during the period from February 26, 2026 through December 31, 2026 (the "Services Period"). During the Services Period, Company agrees to pay Contractor with respect to each lesson or clinic taught by Contractor 70% of shared revenue (with 30% retained by MCC), payable twice monthly throughout the Services Period. Contractor will provide Company with a statement of lessons and clinics on a weekly basis and said lessons and clinics will be processed via Nial Brash Director of Court Sports.

3. **Contractor Status.** Contractor enters into this Agreement as, and shall continue to be, an independent contractor. Under no circumstances shall Contractor look to Company as his employer, or as a partner, agent, or principal. Because Contractor is not an employee of Company, Contractor shall not be eligible to receive any Company-provided benefits, including without limitation health, dental, and vision insurance.

4. **Primary Contact.** Contractor's primary contact at Company regarding the provision of Services hereunder shall be Nial Brash, Director of Court Sports.

5. **Insurance and Licenses.** Contractor shall be responsible for providing his own insurance, as may be required by law. Contractor shall at all times maintain any licenses that may be legally required for the performance of the Services.

6. **Autonomy and Professionalism.** Contractor represents that Contractor has the qualifications and ability to perform the Services in a professional and competent manner, without the control or supervision of Company. Contractor will determine the method, details

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and means of performing the Services. Contractor shall be free from the control and direction of the Company in the performance of the Services hereunder but shall coordinate with Company in terms of scheduling the Services.

7. **Adherence to Company Policies.** Contractor agrees to conform his conduct at all times so it is consistent with Company's policies and procedures. Any conduct that is not in conformance with these policies and procedures shall be the sole responsibility of Contractor, and the parties agree that the Company shall have no responsibility or liability for Contractor's non-compliance.

8. **Contractor May Work For Others.** Contractor represents that he/she is engaged in an independently established trade, occupation or business of the same nature as that involved in the Services to be performed hereunder. As such, and consistent with and subject to Contractor's duties and obligations under this Agreement, Contractor may perform services for, or be engaged or employed by such additional persons, companies or entities as Contractor sees fit during the Services Period; provided, however, the work performed by Contractor for any other person, company or entity shall not in any way interfere with Contractor's obligations under this Agreement.

9. **Taxation.** Taxes shall be the sole responsibility of Contractor. Because Contractor is an independent Contractor, and not an employee of Company, Company will issue to Contractor an IRS Form 1099 with regard to the payments for Services hereunder, and Company will not make any deductions from any amounts payable to Contractor for taxes, including state or federal withholdings. Contractor understands, and agrees to comply with, all legal requirements he has to make tax payments to appropriate federal, state and local taxing authorities.

10. **Termination.** Either Company or Contractor may terminate this Agreement, at any time, with or without cause, by giving written notice to the other. In the event of a termination, for any reason, Contractor shall be entitled to receive only compensation for Services provided through the last day worked, and Company shall not be required to make any other payment to Contractor.

11. **Confidentiality.**

For purposes of this Agreement," Confidential Information" shall mean the proprietary and confidential data or information of Company, which is of tangible or intangible value to Company and is not generally known by or available to the competitors of Company, including without limitation information relating to Club operations as well the identity of and information relating to Club members. Notwithstanding the foregoing, Confidential Information shall not include information

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which: (i) at the time of disclosure to Contractor is in the public domain or thereafter enters the public domain through no wrongful act or omission of Contractor; (ii) is already known by Contractor at the time of disclosure by Company and such information is not otherwise subject to confidentiality obligations of Contractor; or (iii) is available to Contractor at the time of disclosure by Company from a third party who, to Contractor's knowledge, may disclose such information without violation of any confidentiality obligation.

b. In recognition of Company's need to protect its legitimate business interests, Contractor hereby covenants and agrees that he shall regard and treat each item of information or data constituting Confidential Information as strictly confidential and wholly owned by Company and that he will not use, distribute, disclose, reproduce or otherwise communicate any such item of information or data to any person or entity for any purpose other than in connection with her performance of the Services. The covenant contained in the preceding sentence shall apply at all times during the Services Period and at all times thereafter.

c. Contractor represents that in providing Services to Company, he will not be in breach of any agreement with persons or entities other than Company to keep in confidence intellectual property or confidential information acquired by him in confidence or in trust.

d. Notwithstanding any termination of this Agreement, the terms of this paragraph 11 shall remain in full force and effect, and its provisions shall be binding upon the Contractor and his legal representatives, successors and assigns at all times following the termination of this Agreement.

12. **Miscellaneous.**

a. **Assignability.** The rights and obligations of Company under this Agreement may, without the consent of the Contractor, be assigned by the Company, in its sole discretion, to any person, firm, corporation or other business entity.

b. **Governing Law.** This Agreement shall be governed by and construed and enforced in accordance with the internal, substantive laws of the State of California, and federal law, where applicable, without giving effect to the conflict of laws rules thereof.

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c. **Amendment, Waiver.** No amendment or modification of this Agreement shall be binding unless it is in writing signed by the parties. The waiver by any party to this Agreement of a breach of any provision hereof by any other party shall not be construed as a waiver of any subsequent breach by any party.

c. **Entire Agreement.** This Agreement represents the entire agreement between the parties regarding the Contractor's provision of Services to Company.

c. **Binding Effect.** This Agreement shall be binding upon and shall inure to the benefit of the parties hereto and, to the extent expressly provided and permitted herein, to their respective successors and assigns, and no other person shall acquire or have any right under or by virtue of this Agreement.

f. **Right To lnjunctive Relief.** Contractor agrees that damages are an inadequate remedy for any breach of the covenants in this Agreement. In the event of a breach of the terms of this Agreement, Company shall be entitled to an injunction restraining Contractor from the commission or continued commission of any such breach of this Agreement, without showing or proving any actual damages.

f. **Severability of Provisions.** If any provision or any portion of any provision of this Agreement, or the application of any such provision or any portion thereof to any person or circumstance, shall be held invalid or unenforceable, the remaining portion of such provision and the remaining provisions of this Agreement, and the application of such provision or portion of such provision as is held invalid or unenforceable to persons or circumstances other than those as to which it is held invalid or unenforceable, shall not be thereby affected.

h. **Counterparts.** This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but of which taken together shall constitute one and the same agreement.

Contractor:

Dated: 3/4/2026 David Mock DocuSigned by: David Mok 3AA2E74B61D94E4...

Dated: 3/4/2026 Dirk Zander, GM DocuSigned by: David Mok 3AA2E74B61D94E4...